ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: EMAIL ADDRESS: ATTORNEY FOR (*name*): ☐ ATTORNEY FOR ☐ ORIGINAL JUDGMENT CREDITOR ☐ ASSIGNEE OF RECORD	***FOR COURT USE ONLY***
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
PLAINTIFF/PETITIONER: DEFENDANT/RESPONDENT:	CASE NUMBER:
WRIT OF ☐ **EXECUTION (Money Judgment)** ☐ **POSSESSION OF** ☐ **Personal Property** ☐ **Real Property** ☐ **SALE**	☐ **Limited Civil Case** (including Small Claims) ☐ **Unlimited Civil Case** (including Family and Probate)

1. **To the Sheriff or Marshal of the County of:**
   You are directed to enforce the judgment described below with daily interest and your costs as provided by law.

2. **To any registered process server:** You are authorized to serve this writ only in accordance with Code of Civil Procedure section 699.080 or 715.040.

3. *(Name):*
   is the ☐ original judgment creditor ☐ assignee of record whose address is shown on this form above the court's name.

4. **Judgment debtor** *(name, type of legal entity if not a natural person, and last known address):*

   ☐ The judgment debtor has additional names that are identified on an affidavit of identity (Code Civ. Proc., § 680.135).

   ☐ *Check here if there is more than one judgment debtor. List the additional judgment debtors and their last known addresses on an attached sheet of paper labeled "Attachment 4."*

5. **Judgment was entered** on *(date):* *(The type of judgment is stated in item 21.)*

6. ☐ The judgment has been renewed. *(Complete items 6a and 6b.)*
   a. The judgment was renewed on *(dates):*

   b. The most recent renewal extended the period of enforceability of the judgment for *(check one):*
      (1) ☐ 5 years.
      (2) ☐ 10 years.

7. ☐ A joint debtor was declared bound by the judgment under Code of Civil Procedure sections 989 to 994. *(If item 7 is checked, give information about the joint debtor in item 22.)*

NOTICE TO PERSON SERVED: SEE PAGE 4 FOR IMPORTANT INFORMATION.

Plaintiff/Petitioner: Defendant/Respondent:	CASE NUMBER:

8. **Notice of sale** under this writ:
   a. ☐ has not been requested.
   b. ☐ has been requested by *(name and address):*

9. ☐ This writ is a Writ of Possession or a Writ of Sale. *(If item 9 is checked, give information about the writ of possession or writ of sale in item 23.)*

10. ☐ This writ is issued on a sister-state judgment.

Note for items 11–17: For more information on the amount recoverable by a judgment creditor, claiming costs after judgment, and calculating accrued interest, read *Information Sheet for Calculating Interest and Amount Owed on a Judgment* (form MC-013-INFO).

11. Total amount of the judgment $
(If the judgment has been renewed, state the amount of the most recent renewal. Otherwise, state the amount at the time the judgment was entered.)

12. Costs after judgment *(Code Civ. Proc., §§ 685.040–685.090)* $

13. Subtotal *(add items 11 and 12)* $_____

14. Credits to principal *(payments apply to interest first, per Code of Civil Procedure section 695.220)* $

15. Principal remaining due *(subtract item 14 from item 13)* $_____

16. Accrued interest remaining due after applying any payments $
(Read form MC-013-INFO for information on calculating accrued interest. Interest cannot be charged on fees included in the judgment under Government Code section 6103.5.)

17. Fee for issuance of writ *(Gov. Code, § 70626(a)(l))* $

18. **Total amount due** *(add items 15, 16, and 17)* $_____

19. **Levying officer:**
   a. Add daily interest from the date of the writ in the following amount
   (Read form MC-013-INFO for information on the legal daily rates of interest. Interest cannot be charged on fees included in the judgment under Government Code section 6103.5.) $
   b. Pay the following amount directly to court costs included in items 11 and 17
   (Gov. Code, §§ 6103.5, 68637; Code Civ. Proc., § 699.520(j).) $

20. ☐ The amounts called for in items 11–19 are different for each debtor. *(If item 20 is checked, attach a page labeled "Attachment 20" and write the amounts for each debtor. Label each amount with the applicable item number.)*

[SEAL]

Date: _____ Clerk, by _____, Deputy

Plaintiff/Petitioner: Defendant/Respondent:	CASE NUMBER:

21. The judgment is for *(check one):*

a. ☐ wages owed.

b. ☐ child support or spousal support.

c. ☐ personal debt, as defined in Code of Civil Procedure section 683.110(d). (*If this box is checked, the judgment creditor must complete* Declaration of Address Verification *(form WG-015/EJ-135) before asking the sheriff to enforce this writ.*)

d. ☐ other *(describe):*

22. ☐ A joint debtor was declared bound by the judgment under Code of Civil Procedure sections 989 through 994.

a. The joint debtor is *(specify the name, type of legal entity if not a natural person, and last known address of joint debtor):*

b. The joint debtor was declared bound by the judgment on *(date):*

☐ *Check here if you need more space to identify joint debtors or itemize costs against joint debtors. List the additional joint debtors or itemized costs on an attached sheet of paper labeled "Attachment 22."*

23. ☐ This writ is a Writ of Possession or Writ of Sale. Judgment was entered for the following:

a. ☐ Possession of real property: The complaint was filed on *(date):*

(1) The *Prejudgment Claim of Right to Possession* (form CP10.5) *(check one):*

(a) ☐ was served in compliance with Code of Civil Procedure section 415.46. The judgment includes all tenants, subtenants, named claimants, and other occupants of the premises.

(b) ☐ was NOT served in compliance with Code of Civil Procedure section 415.46.

(2) ☐ The unlawful detainer resulted from a foreclosure sale of a rental housing unit. (An occupant not named in the judgment may file a *Claim of Right to Possession* at any time up to and including the time the levying officer returns to effect eviction, regardless of whether a *Prejudgment Claim of Right to Possession* was served.) *(See Code Civ. Proc., §§ 415.46 & 1174.3(a)(2).)*

(3) *(You must complete this item if you checked 23a(1)(b) or 23a(2)):*

(a) The daily rental value on the date the complaint was filed was $

(b) The court will hear objections to enforcement of the judgment under Code of Civil Procedure section 1174.3 on the following dates *(specify):*

b. ☐ Possession of personal property.

☐ If delivery cannot be had, then for the value *(itemize in item 23e)* specified in the judgment or supplemental order.

c. ☐ Sale of personal property.

d. ☐ Sale of real property.

e. The property is described ☐ below ☐ on Attachment 23e.

Plaintiff/Petitioner: Defendant/Respondent:	CASE NUMBER:

NOTICE TO PERSON SERVED

WRIT OF EXECUTION OR SALE. Your rights and duties are indicated on the accompanying *Notice of Levy* (form EJ-150).

WRIT OF POSSESSION OF PERSONAL PROPERTY. If the levying officer is not able to take custody of the property, the levying officer will demand that you turn over the property. If custody is not obtained following demand, the judgment may be enforced as a money judgment for the value of the property specified in the judgment or in a supplemental order.

WRIT OF POSSESSION OF REAL PROPERTY. If the premises are not vacated within five days after the date of service on the occupant or, if service is by posting, within five days after service on you, the levying officer will remove the occupants from the real property and place the judgment creditor in possession of the property. Except for a mobile home, personal property remaining on the premises will be sold or otherwise disposed of in accordance with Code of Civil Procedure section 1174 unless you or the owner of the property pays the judgment creditor the reasonable cost of storage and takes possession of the personal property not later than 15 days after the time the judgment creditor takes possession of the premises.

EXCEPTION IF RENTAL HOUSING UNIT WAS FORECLOSED. If the residential property that you are renting was sold in a foreclosure, you have additional time before you must vacate the premises. If you have a lease for a fixed term, such as for a year, you may remain in the property until the term is up. If you have a periodic lease or tenancy, such as from month to month, you may remain in the property for 90 days after receiving a notice to quit. A blank *Claim of Right to Possession and Notice of Hearing* (form CP10) accompanies this writ. You may claim your right to remain on the property by filling it out and giving it to the sheriff or levying officer.

EXCEPTION IF YOU WERE NOT SERVED WITH A FORM CALLED *PREJUDGMENT CLAIM OF RIGHT TO POSSESSION*. If you were not named in the judgment for possession and you occupied the premises on the date on which the unlawful detainer case was filed, you may object to the enforcement of the judgment against you. You must complete *Claim of Right to Possession and Notice of Hearing* (form CP10) and give it to the sheriff or levying officer. A blank form accompanies this writ. You have this right whether or not the property you are renting was sold in a foreclosure.

JUDGMENTS FOR PERSONAL DEBT. If you are the judgment debtor identified in item 4 on this form, and if item 21 on this form says the judgment is for personal debt, the judgment creditor is required to verify your address before asking the levying officer to enforce this *Writ of Execution*. The judgment creditor must give the levying officer a completed copy of *Declaration of Address Verification* (form WG-015/EJ-135) and must file completed form WG-015/EJ-135 with the court within 10 business days of giving a copy of the form to the levying officer. If the judgment creditor doesn't take these steps, you can ask the court to stay any wage garnishment order, bank account levy, or other levy related to this *Writ of Execution*. You can use *Application for Stay of Levy or Garnishment* (form WG-017/EJ-137) to ask the court to stay the levy or garnishment until the address verification has been completed.

For your protection and privacy, please press the Clear button after you have printed the form.

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